

24LBCV01533 24LBCV01533

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-28

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CCP §583.410 permits the Court to dismiss an action if the case is not brought to trial within two years after filing. Defendant provides evidence that the case has been called for trial on five occasions and each time Plaintiffs' attorney has appeared and indicated "not ready" for trial. On the fifth such occasion, the Court specially set this hearing on Defendant's motion to dismiss the action.

This action was filed on 7/25/24 and this matter is set for hearing on 7/28/26, more than two years thereafter. Any opposition to the motion was due on or before 7/15/26. Plaintiffs have not filed timely opposition papers, and the Court will not consider late-filed opposition papers.

In light of Plaintiffs' repeated failure to be ready for trial, the passage of more than two years since the filing of the complaint, and the lack of opposition, the motion to dismiss is granted. Defendant is ordered to prepare a judgment of dismissal for processing.

Defendant is ordered to give notice.